議事録

欧州議会 対日関係代表団（DJP）通常会合

2026年9月17日（水）09:36–10:51（中央欧州夏時間）　ストラスブール

主議題　日本の2024年家族法改正と、国際事案およびEU市民への影響に関する意見交換

原語版　—　本人の発言をそのまま記録

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1. 会合の概要

項目	内容
会合	欧州議会 対日関係代表団（Delegation for relations with Japan, DJP）通常会合
日時	2026年9月17日（水）09:36:13〜10:51:46（中央欧州夏時間）
場所	ストラスブール（欧州議会）。一部の出席者はオンライン参加
議題	1 議事日程案の採択／2 2026年6月25日会合議事録の採択／3 議長からのお知らせ／4 **日本の2024年家族法改正と、国際事案およびEU市民への影響に関する意見交換**／5 第43回EU・日本議員会議（2026年7月8〜9日、ストラスブール）の報告／6 その他・次回日程
通訳	英語・フランス語・ドイツ語・ポーランド語（代表団の言語プロファイル）に加え、本会合に限りスペイン語・日本語通訳を例外的に設置
出典	European Parliament Multimedia Centre 公開録画。本記録は **Original Audio（原語トラック）** から作成

言語間で表現のずれの恐れがある点（英語通訳版と本人の発言との相違）は、巻末の付記Cにまとめた。

2. 開会・手続事項（0:00:05〜0:02:22）

ビエラン議長（Adam Bielan、ECR・ポーランド）　（英語）

0:00:13 Dear colleagues and guests, welcome to the meeting of the European Parliament Delegation for Relations with Japan. This is our first meeting and after the summer break and after the 43rd EU-Japan Interparlamentary Meeting on the 8th and 9th of July this year. We have two important topics on the agenda, but before diving in, I need to make some procedural announcements. Interpretation is available from and from the EU. English, French, German and Polish in accordance with these delegations linguistics profile. Additionally Spanish and Japanese interpretation was requested and exceptionally granted for this meeting. The meeting is open. and it is web streamed

0:01:05 Now let's start with the agenda of this meeting. The first point of agenda is adoption of the draft agenda. If there are no comments, the draft agenda is adopted. The second point, adoption of the minutes of the meeting of the 25th June of June 2026. The draft minutes of this meeting, which was held in camera, were included in the meeting dossier. The Secretariat has not received any comments on these minutes.

0:01:34 〔原語版では "Jeśli nie są żądne komandki…" とポーランド語に誤判定。英語版より〕 If there are no further comments, the draft minutes are adopted.

0:01:39 Point number three, chair's announcement. I have several short announcements to make. As some of you have already heard, Japan's ambassador to the EU, our close friend and frequent guest at these meetings, Mr. Kazatushi Aikawa, will be leaving Brussels soon. His successor, Mr. Tamaki Tsukada, has already been appointed by the Japanese government and is expected to arrive in mid-October. Also, the EU ambassador to Japan has changed. Mr Jean-Eric Paquet has been replaced in Tokyo by the ambassador designate, Mr Giorgio Aliberti. We'll organize exchanges with both ambassadors at our forthcoming delegations meeting.

3. 議題4：日本の2024年家族法改正 — 議長の導入（0:02:24〜0:04:50）

ビエラン議長 （英語）

0:02:24 Now I would like to pass straight to the very important item on our agenda, item number four, exchange of views on the 2024 family law reform in Japan and its implications for the international cases and EU citizens. Colleagues, during the previous legislature, the European Parliament and in particular our Committee on Petitions was contacted by a number of European parents affected by parental child abduction. of custody and access disputes in Japan asking to intervene by diplomatic means on their behalf. This important and delicate issue has indeed been a topic of sensitive discussions in European Parliament's delegation for relations with Japan and in our earlier exchanges with the Japanese authorities, as well as of the European Parliament resolution of 8 July 2020.

0:03:24 波 Nasza delegacja tez ̇wzięła przymocę, w tym spotkaniu. 〔両トラックとも同じ区間がポーランド語と判定された約7秒。語は不明瞭。前後の英語の流れからは「我々の代表団もこの会合で…」程度〕

0:03:32 We are therefore pleased to be informed that following the 2024 family law reform in Japan, an amendment to the civil court entered into force on the 1st of April 2026. We are hopeful that this amendment could signify an important change in ensuring children's and parents' rights in line with international legal instruments. And we have here today a number of experts in physical presence or online to explain and discuss these changes.

0:04:08 〔原語版ではポーランド語に誤判定。英語版より〕 First of all, I would like to welcome the EP Vice President Eva Kopacz. who is also the European Parliament coordinator on children's rights. Since 2018, Ms. Kopacz and former EP Children's Rights Coordinators have engaged with parents affected by parental child abduction, loss of custody or access to their children in Japan. Ms. Kopash, the floor is yours. We are looking forward to your introductory remarks on the topic and to hear more on your work on this issue. After, I will give the floor to our experts representing the government of Japan. Please.

4. コパチ副議長の導入発言（0:04:54〜0:10:37）

コパチ副議長（Ewa Kopacz、欧州議会副議長・子どもの権利調整官）

（冒頭のみ英語、本論は**ポーランド語**）

0:04:56 英 Welcome everybody. My speech will be in Polish. Please put your headphones.

0:05:07 波 Szanowny Panie Przewodniczący, szanowni goście i eksperci, przede wszystkim Panu Panie Przewodniczący dziękuję za przychylenie się do prośby o podjęcie tematu zmian w prawie rodzinnym w Japonii i ich wpływu na sytuację obywateli Unii Europejskiej i ich rodzin, a w szczególności, co szczególnie mnie dotyczy i funkcji wykonywanej, w szczególności dzieci.

0:05:35 Gdy po raz pierwszy w roku 2020 na forum delegacji do spraw relacji z Japonią poruszyliśmy te bardzo ważne, ale zarazem bardzo trudne sprawy, Parlament Europejski przyjął rezolucję, w której jasno określił swoje stanowisko.

0:05:54 Obraz, jaki wyłaniał się wówczas na podstawie złożonych petycji oraz spraw wniesionych do mojego biura, był bardzo niepokojący. Mieliśmy do czynienia z dwoma rodzajami spraw, które bardzo boleśnie dotykały obywateli Unii i ich dzieci. Po pierwsze, pierwszy miał wymiar transgraniczny i dotyczył skutecznej implementacji przepisów konwencji haskiej z 1980 roku. W sprawie uprowadzeń rodzicielskich dzieci oraz wykonywania decyzji o powrocie. W sytuacji, gdy jeden z rodziców nielegalnie uprowadził lub zatrzymywał dzieci w Japonii, pozostawiony rodzic bardzo często nie miał żadnego wsparcia podczas procedury haskiej. I nawet gdy japoński sąd decydował o powrocie dziecka, decyzja ta... nie była wykonywana. W praktyce oznaczało to całkowitą izolację dzieci od pozostawionego rodzica.

0:06:53 Drugi typ spraw miał wymiar krajowy i dotyczył par mieszanych, ale mieszkających w Japonii. Po rozpadzie związku rodzic, który nie był Japończykiem, tracił zazwyczaj kontakt ze swoimi dziećmi. Po tym, jak japoński rodzic zabierał dzieci ze wspólnego domu, co często odbywało się pod nieobecność tego pierwszego, było to bezpośrednio związane z systemem przyznawania wyłączniej opieki nad dzieckiem tylko jednemu z rodziców, głównie temu, który miał dzieci przy sobie. System włączonej opieki pozbawiał drugiego rodzica praw, a co za tym idzie w praktyce, jakichkolwiek kontaktów z dzieckiem, ale też braku jakiejkolwiek wiedzy o nim.

0:07:56 Jako Parlament Europejski domagalismy się przede wszystkim wprowadzenia po pierwsze skutecznej procedury wykonywania decyzji sądów o powrocie dziecka w ramach procedury haskiej. Po drugie zmian w przepisach, które umozliwiają realny bliski kontakt dziecka z obojgiem rodziców po ich rozstaniu oraz po trzecie wprowadzenia do japońskiego prawa rodzinnego mozliwosci wspólnej opieki nad dzieckiem. Dzisiejsze spotkanie ma na celu przedstawic zmiany w japońskim prawie, jakie w ostatnim czasie zaszły własnie w tym kontekscie i przyjrzec się ich skutecznosci. Muszę przyznac, ze rodzice, którzy stracili kontakt ze swoimi dziecmi, a którzy od lat walczą w Japonii o prawo do bycia częscią ich zycia, bardzo sceptycznie podchodzą.

0:08:56 Dlatego chciałabym dzisiaj usłyszec, jak wprowadzane zmiany mają zapobiec sytuacjom, które opisane zostały w rezolucji parlamentu z 2020 roku. Jak w praktyce będzie wyglądac sprawowanie wspólnej opieki nad dzieckiem po rozstaniu rodziców i co tak naprawdę kryje się pod hasłem wspólna opieka. Jak nowe zasady będą stosowane przez sądy w sytuacji konfliktu. gdy jeden z nich będzie przeciwny wspólnej opiece, a drugi będzie o takie rozwiązanie wnioskował. I wreszcie po ostatnie, jak nowe przepisy będą mogły stosowac się do juz rozstrzygniętych spraw o opiekę, jak więc w praktyce będzie wyglądac ta procedura i czy są przewidziane skuteczne mechanizmy egzekwowania decyzji o kontaktach i wspólnej opiece.

0:09:55 Pytań, jak Państwo widzicie, jest wiele, ale tez mnozą się wątpliwosci. Dlatego z zainteresowaniem wysłucham prezentacji dzisiejszych gosci i ekspertów. Mam ogromną nadzieję, ze omawiane przepisy przyczynią się do skutecznej realizacji jednego z podstawowych praw dziecka, jakim jest prawo do bliskich kontaktów i relacji z obogiem rodziców po ich rozstaniu. Oczywiscie w sytuacji, gdy nie zagrazą to jego bezpieczeństwu. Dziękuję bardzo. Z wielką uwagą będę wsłuchiwac się wystąpienia naszych zaproszonych gosci i ekspertów. Dziękuję Panie Przewodniczący.

5. 日本政府代表の発表

ビエラン議長 （英語）

0:10:39 Thank you, Mr. Kovac, for your remarks. I will now give the floor to the representatives of the Japanese government. We have with us two experts: Mr. Yasuyuki Ebata, Director, HAC Convention Division, Consular Affairs Bureau, Minister of Foreign Affairs. and Mr Masuyoshi Furuya, Councillor, Civil Affairs Bureau, in Ministry of Justice on behalf of the Government of Japan. Mr Furuya is remotely from Tokyo. Welcome to this meeting and thank you for agreeing to share your expertise. You both have 10 to 15 minutes for your presentations on behalf of the Japanese government. The floor is yours, please.

5.1 江端氏（外務省領事局ハーグ条約室長）の発表（0:11:32〜0:23:49）— 英語

0:11:32 Thank you very much. Thank you, Mr. Chairman and distinguished guests and also especially Madam Vice President and members of the DJP. Good morning. Thank you very much for giving me this opportunity today. My name is Evata, Director of the Heng Convention Division at the Ministry of Foreign Affairs of Japan. I have come here all the way from Tokyo because I would like to discuss with you the European Parliament resolution adopted in 2020. These days, business trips to Europe are quite expensive, particularly for Japanese people, due to weak yen.

0:12:24 〔原語版では韓国語に誤判定。英語指定の再処理より〕 Nevertheless, it is a great pleasure to be here.

0:12:42 Sorry. Oh yes

0:12:46 And this resolution calls on Japan to ensure the return of children under the HEN convention, facilitate parent-child access, and introduce joint custody. Six years have now passed since its adoption. Today, I would like to explain how Japan has changed the situation since 2020.

0:13:20 But first, there is one issue I would like to bring to your attention. Resolution could, in certain circumstances, have unintended consequences. For example,

0:13:44 The resolution could, in certain circumstances, have unintended consequences. For example, when a divorced Japanese parent residing in Europe wishes to make a temporary trip to Japan with their children during the summer holidays or Christmas holidays, the other parents may object and seek to prevent their child from leaving the country. In such cases, the mother may be brought before court. However, the 2020 resolution has been presented to courts as evidence against Japanese parents. As a result, courts may issue orders preventing the child from leaving the country.

0:14:31 Consequently, some Japanese nationals residing in Europe are unable to return temporarily to Japan with their children. Some children are also unable to visit their grandparents in Japan. Japan-EU relations have deepened considerably in recent years, extending far beyond the economy to areas such as security and many others. At the heart of the relationship are people-to-people exchanges. I therefore believe we need to find a way to address the concerns surrounding this resolution.

0:15:19 Japan ratified the 1980 Heng Convention in 2014. And the Implementation Act of the Convention was enacted also in 2014. In 2020, Japan amended this legislation, bringing about a significant change in the enforcement of court orders for the return of children.

0:15:54 This table shows Japan's track record in return cases. Of the 141 cases that have reached the conclusion, 82 resulted in return and 59 in non-return. Of the 82 cases in which return was decided, 76 resulted in the child's actual return. In other words, 93% of return decisions were implemented. and the children were returned to their state of habitual residence, including yours.

0:16:37 2020 amendment of implementation act significantly changed the enforcement procedures. Various conditions and restrictions were removed, making it substantially easier to enforce orders for the return of children.

0:17:04 Here is the result. The success rate in enforcement was 44% before 2020. Following the 2020 amendment, it improved dramatically, reaching 75%.

0:17:33 Indirect comparatory execution is used to facilitate the implementation of parent-child access arrangements. This means that when a court has ordered access but the child is not made available for visitation, the parent who fails to comply may be required to pay a specified amount of money for each day that the visitation does not take place.

0:18:08 This slide shows the proportion of Hague Convention cases that resulted in arrangements for parent-child access. According to statistics by the HCCH, the average among contracting states is 27%, whereas the figure for Japan is 40%. For comparison, it is 8% for Germany, 26% for France, and 36% for the United Kingdom.

0:18:48 Japan also provides comprehensive support for parent-child access. As this comparison shows, Japan's support programs are more comprehensive than those of many other countries.

0:19:08 This chart shows that the percentage of cases in which the courts denied access was only 3 to 5%. In more than 95% of cases, the courts issued decisions allowing parent-child access.

0:19:32 The amended civil court came into effect in April of this year, introducing a joint custody after divorce. and also establishing obligation of mutual respect for individuality and cooperation between parents. I believe that the Japanese society will change as a result of this reform. The Ministry of Justice will provide further details later.

0:20:07 any event individual cases need to be resolved through a bilateral framework

0:20:18 In fact, until recently, Germany had also issued travel advisory like this concerning Japan's implementation of the HEN convention. It mentions that even legally binding return decisions of Japanese courts are not enforced against the will of the abducting parent. In February of this year, I held discussions with the German Foreign Office to remove the references to the Hain Convention contained in its travel advisory for Japan. and they agreed. As a result, the German travel advisory now reads quite differently. In essence, it says Japan had some difficulties in the past with regard to the enforcement of court decisions. Since 2020, statutorily provisions have been enforced aimed at facilitating enforcement.

0:21:32 And following Germany, now it is your turn to revise its resolution in 2020. The concerns regarding Japan rise in the resolution have been addressed through significant changes in Japan. Children and wonderfully removed to Japan are being returned to their countries. Parent-child access is being properly facilitated. Joint custody has also been introduced in Japan this year. In addition, the Children and Families Agency was established in 2023.

0:22:17 And in short, Japan's legal framework, institutions, and practices have evolved significantly since the adoption of the 2020 resolution. Ladies and gentlemen, Japan has completed all the actions and the measures identified in the resolution. Now it is time to remedy the situation in order to enhance the... our relationship, including people-to-people exchanges. I believe Japan deserved it. If you nevertheless encounter any further problems, please do not hesitate to contact us. We are here to help you. At the same time, I would like to ask for your understanding and cooperation in addressing the 2020 European Parliament resolution.

0:23:14 There are still Japanese nationals residing in Europe who are unable to return temporarily to Japan with their children. Again, in order to further strengthen our invariable relationship, I believe we should work together to find practical solutions. I hope that today's discussion will deepen our mutual understanding. and help us move forward together. Thank you very much.

ビエラン議長

0:23:51 Mr. Bata, now I will give the floor to Mr. Furia, please.

5.2 古谷氏（法務省民事局参事官、東京から遠隔）の発表（0:24:12〜0:29:57）— 英語

0:24:12 May I start my presentation? Yes, we can hear you.

0:24:17 Good morning and good afternoon Tokyo. My name is Masayoshi Furuya, Councillor of the Ministry of Justice. Anonymous members of the European Parliament, distinguished guests, ladies and gentlemen, it is a great honor to speak before you today. Thank you for this very opportunity. It is a special pleasure to speak here in Strasbourg, even through webinars, where different languages and legal traditions meet. Today, I'd like to add a Japanese voice, and I promise to keep it very brief.

0:24:56 You may already know, as a distinguished member of Parliament, Ms. Eva Kovacs said, Japan now allows joint parental responsibility after divorce. In addition to this change, in response to your particular interest in parent-child contact, I'd like to highlight another key part of the reform, the legal duty to respect the other parents. Next slide, please.

0:25:31 Can you change... Okay, thank you very much. Summary of the amendment. The Civil Code Amendment Act was enacted in May 2024 and came into force on 1st April 2026 this year. The law protects the best interest of child, but it goes further. It clearly states, stipulates, that the president must respect each other. This duty continues after divorce, even when one parent has parent responsibilities. I can emphasize a message, divorce may end a marriage, but it doesn't end the duty to respect the other parents. Next slide, please.

0:26:35 What has changed under our family law reform? Why is this so important? As you can see in the underlined text at the bottom of the slide, this is one of the core part of our reform. The reform introduces the option of joint parental responsibilities after divorce. It also clearly states that parents must respect each other's individuality and work together in matters concerning their children. I heard some foreign parents in Japan have been unable to see their children, some even in foreign countries. There has been concerns that the parents might move a child to gain an advantage in the court case. If other parents doesn't know where the child is, contact may become difficult or even impossible. Our amendment law gives courts a clearer basis for considering such conduct.

0:27:46 Let me give one clear example. A parent move a child without a good reason. The parent doesn't tell the other parent in advance and refuses to say where the child is. As a result, contact becomes very difficult or even impossible. The court may now consider this conduct in two ways. First, it may be against the best interest of the child. Second, it may breach the duty to respect and work with the other parents. The second point is especially important on this situation. The seriousness of the breach may count against that parent when the court decides parental responsibility or whether an area decision should be changed. I can recall moving a child without a good reason, hiding a child's location, and blocking contact may have legal consequences. Its query is stipulated on what revised civil law. Next slide, please.

0:28:57 So, finally, the Minister of Justice is making a strong effort to explain the reform. We are producing multilingual brushes, including in French and English, explainer videos and detailed questions and answers, all on our website. We are actively sharing accurate, up-to-date information. This matters because some views of Japan's familial law may still be based on the former system. I respectfully invite you to refer to our official materials when considering Japan's legal current system. Please remember three points. The reform is not only about joint parent responsibilities. Respect for the other parent is now clearly stipulated in our legal and civil law. A breach of that duty may affect the court decision. Thank you very much for your kind attention.

6. 永田教授（大阪大学）の発表（0:30:04〜0:38:40）— 英語

ビエラン議長

0:30:04 Thank you very much for these informative presentations. They have been distributed in the meeting room and will be circulated by email. Now I would like to pass the floor to our independent academic expert who is also joining us online from Tokyo. Ms. Mari Nagata, who is professor of law at Osaka University and is also a trained mediator of Mediation Center for Family Conflicts and Child Abduction and its ambassador for Japan. Professor Nagata, you have the floor for five to seven minutes. We look forward to hearing your views and as an independent academic expert and... practitioner on how these legislative changes could help solve the issues, especially for the European parents who have been facing issues described before. The floor is yours.

永田教授

0:31:03 Thank you very much, Mr. Chair and honorable members. Thank you very much for the kind introduction and for the opportunity to address you today. And please allow me to apologize for joining you only online rather than in person. We have just heard about the new legal framework. I'd like to add a researcher's perspective focusing on how the reform may operate in practice. particularly in relation to parent-child contact and dispute resolution. Before I begin, one brief terminological note. The expression joint custody, joint parental responsibility, and joint parental authority used in today's presentations all refer to the same Japanese legal term, kyodo shinken, and I will use joint parental authority.

0:32:08 Thank you. And let me begin with a feature of the Japanese divorce system that is easily missed in a European discussion. In Japan, divorce normally does not mean judicial divorce. According to official statistics, around 90% of divorces are concluded simply by filing an agreed registration form with the municipality. A court does not approve that divorce or scrutinize a parenting plan. Next slide, please.

0:33:14 Yes, thank you very much. And against that background, what are parents choosing under the new system? This slide shows an only local snapshot. Nationwide official data have since become available. In April 2026, 24.7% of minor children whose parents divorced were under joint parental authority. Because the national figure counts children rather than divorces, it is not directly comparable with the 18% shown here in this slide, but both indicate that the new option is already being used. So next slide, please.

0:33:58 Now to the central question. Does joint parental authority actually ensure parent-child contact? Since 2012, Japanese law has required divorcing parents to address parent-child contact in the child's best interest. But parental authority and contact remain legally distinct. Joint authority concerns parental decision-making. It does not by itself secure any particular amount or quality of contact. court-related divorce cases involving minor children, about 55% include a contact arrangement. where the frequency is specified once a month is the most common pattern in a european context that is strikingly limited The larger blind spot is what happens outside court. Japan has no reliable nationwide official data on whether contact arrangements are made and followed in the great majority of divorces concluded by agreement. Next, please.

0:35:17 A non-governmental survey, although not limited to divorce by agreement, offers a cautionary indication of a broader implementation problem. The survey was submitted to the Ministry of Justice Family Law Subcommittee in 2022. Among respondents who had a contact arrangement, nearly half reported that it was not being fully followed as agreed. This figure requires The survey included only mothers' perspectives and was based on a non-random sample collected through single mother support organizations. Nevertheless, it identifies a serious implementation risk. Even where parents reach an agreement, continuing contact may remain fragile. A change in the legal category of parental authority cannot transform this established practice overnight. Next, please.

0:36:25 This is where specialized dispute resolution becomes important. Next one, please. Next slide, please. Yes, thank you. In Japan, two relevant forms, family court mediation and specialized private aid year. The former can produce a detailed and enforceable agreement, while the latter may offer earlier and more flexible support. neither is appropriate in every case careful screening for domestic violence and coercive control is essential and judicial protection must remain available Where it is safe and appropriate, BOP can help parents develop a detailed workable parenting plan. Private ADR may also help them adapt it as the child's need and the family circumstances change. Next slide, please. For internationally connected families, continuing contact may be the central issue after separation or divorce beyond the... The question of a charge return under the Hague Convention. The practical difficulties shown on this slide make cross-border arrangements especially demanding.

0:37:47 That is why specialized ADR may have an even greater role to play in international cases, helping parents develop and adapt a workable plan across two countries. Next slide, please.

0:38:02 So will joint parental authority change parent-child contact? It creates an important legal possibility but not a guarantee. Its impact will depend largely on arrangements made outside court where most Japanese divorce occur. Japan therefore needs appropriate ADR, timely court protection, and better post-reform data. Next slide, please. Next slide, please.

0:38:32 So, Mr. Chirio, honorable members, thank you very much for your attention. I would like to be glad to take your questions. Thank you. Thank you.

7. 欧州委員会の発言（0:38:44〜0:45:38）— 英語

ビエラン議長

0:38:44 Thank you very much for your views, Professor Nagata. Lastly, I would like to welcome our experts from the European Commission, Ms. Angela Sears de Bono, Legal and Policy Officer at the Director General for Justice and Consumers, and Ms. Patricia De Luca, Team Leader for External Relations in the Civil Justice Policy Unit in the Directorate General for Justice and Consumers. Both are online from Brussels. Colleagues, the floor is yours. You have also 5-7 minutes for your comments. Please.

欧州委員会 Patricia De Luca 氏 （両名分を発言）

0:39:19 Thank you, Chair for the floor. I'm Patricia De Luca. The Commission would... to thank the European Parliament for having organized this important hearing and all participants for their interesting presentation. The issue of parental child abduction and visiting rights is of the utmost importance for the European Union. It is an essential part of the EU policy to promote the rights of the child, both within the EU and in its external action. In this context, the European Parliament 〔英語版では "the European Commission has followed"〕 development in Japan since the ratification of the 1988 Convention in 2014. However, notwithstanding the satisfactory implementation law adopted already in 2014, in practice, the return of the abducted child to a new member state was in several cases hindered. by the lack of enforcement of judicial decision of EU courts. And the wide use of allegations of domestic violence by Japanese courts in order to refuse the return of the child to their place of habitual residence was also a matter of concern for us. Moreover, without the agreement of the Japanese parent, also the visiting rights of the foreign parents were not enforced.

0:40:55 Several European citizens reported to the Commission about the lack of cooperation of Japanese authorities in this context, which cut off them permanently from the life of their children. We stress that the children have the right to maintain personal relations and direct contacts with the left behind parents on a regular basis, in line with the principle of the UN. to which Japan is a party. And we recall also that under its Article 21, the 1980 Convention has a specific provision in order to facilitate and ensure the protection of the right of access. And it is also a duty of the central authorities to take steps to remove as far as possible obstacles to the exercise of...

0:41:59 The reform entered into application in April 2020 of the civil execution law and the law implemented in the Antinetic Convention, well, it is certainly a positive step, but there are still mixed opinions on the actual rate of successful enforcement of foreign decisions after this reform. But for us, it is commendable that Japan... and try to solve it. We also welcome the introduction of a mediation scheme for international child adoption and access case, and would be interested in knowing whether the agreement issued from mediation can be enforced if not respected by one of the parties. And we hope to continue to engage with Japan on this matter. Finally, on the recent reform of the civil code,

0:43:01 Well, the law effectively only came into application on the 1st of April this year, so it is not long enough to assess how this law will work in practice. But we hope that this shows a remarkable change of attitude and the increasing awareness that even if the parents are divorced, they have both the right to... we stress again that also the participation of both parents to the day-to-day life of their children is important. So maybe we will have some questions really on the practical application of this, you know, what happens if one of the parents does not comply with the agreement that they have reached on the joint parental... responsibility and how the courts are involved. And important for us how this new law is expected to have an impact on the older pending case where the foreign parent was deprived of any contact with their children. And finally, about the statistics that have been showed, we would like to understand if include also voluntary returns or they are the true reflection of cases where a successful enforcement of a return order under the 1980 convention happened against the will of the taking parent. Thanks a lot for your attention.

ビエラン議長

0:45:03 波 Dziękuję bardzo. Teraz Pani Patrycja De Luca. 〔ポーランド語判定だが内容は英語の進行発言と同じ：「ありがとうございます。次にパトリシア・デ・ルカさん」〕 Sorry, sorry, Miss Sirius de Bono. — Sorry, I spoke for both. — Thank you very much. So thank you for your insights. I would like to open the floor to members for the questions and comments. We'll first collect all questions and then give the floor for our speakers for their answers and final remarks. Only if time permits, we'll be able to have a second round in this debate. Colleagues, the floor is yours.

8. 議員からの質問（0:45:42〜0:54:57）

ビエラン議長

0:45:42 独 Herr Petroff, bitte.

ペトロフ議員（Hristo Petrov、Renew・ブルガリア） （英語）

0:45:46 Thank you, Chair. Let me first thank all participants in this important discussion on children's rights. I am aware of the importance attached to children in Japanese society and it's essential that the implementation of this reform always respects the best interests of the child. I would like to focus on the practical implications of this reform, which has recently come into force for transitional families and in particular for European Union citizens.

0:46:18 〔原語版ではスロベニア語に誤判定。英語版より〕 involved in proceeding relating to the determination of parental responsibility and the change of residence. So my question goes to Professor Nagata.

0:46:33 From your mediation experience, what are the main safeguards needed to make joint parental responsibility workable when parents live in different countries? For example, how should agreements address the child's residence, international travel, schooling and regular contact with the non-resident parent? And I also have a question on another related topic. With regard to children's right to their identity, could you please explain how Japan approaches the issue of access to information concerning the biological origins of an adopted child, particularly where the child has links to another country or a member state of the European Union, in particular in cases of cross-border adoption, what mechanisms are in place? Once the child has reached the appropriate age, they can effectively access information about their biological parents and family history, whilst respecting the privacy and protection of all parties concerned. Thank you.

ビエラン議長

0:47:53 Thank you very much. Vice Chair Łukaciewska, please.

ウカチェフスカ副議長（Elżbieta Katarzyna Łukacijewska、PPE・ポーランド）

（ポーランド語）

0:47:58 波 Dziękuję bardzo za informację. Ten temat bardzo istotny, bardzo ważny. Wszyscy chcielibyśmy, aby dzieci były szczęśliwe i miały kontakt z dwojgiem rodziców. Natomiast niezależne źródła wskazują, że ta reforma koncentruje się na pieczy prawnej. Parental authority natomiast nie wprowadza istotnych... prawa do kontaktów i wizyt, czyli wzmacnia ramy prawne pieczy, ale nie narzędzia egzekucji parenting time. I tutaj ja mam pytanie do strony japońskiej, czy planowane są w tym zakresie dalsze kroki legislacyjne, a do Komisji Europejskiej mam pytanie, bo w 2020 roku mieliśmy rezolucję, która mówiła o potrzebie takiego specjalnego punktu kontaktowego w portalu Justice na przykład, który daje wsparcie konsularne i informacyjne dla obywateli Unii Europejskiej w Japonii. Moje pytanie jest, czy taki punkt kontaktowy został zaktualizowany, czy on funkcjonuje, czy ta sprawa... Ten temat został niezrealizowany. Dziękuję bardzo.

ビエラン議長

0:49:40 Thank you very much, Miss Lauretti.

ラウレーティ議員（Camilla Laureti、S&D・イタリア） （英語）

0:49:45 Thank you, Chair. I have not really, I'm not really ever a question, but a proposal. Thank you really to you, because I think that this meeting is really important. And thank you also to our guests for taking part in this public exchange. It's really important, and especially in this meeting. I've recently become aware of the differences between certain principles of family law in Japan and the EU member state. I've also had the opportunity to learn about the situation of an European citizen affected by these differences, including an Italian father, Michele Dallarno. Maybe you heard about him. who has been denied the opportunity to maintain contact with his own children. In this regard, while once again expressing my appreciation for the importance of today's meeting, I believe that it is also the role of this delegation to hear directly from citizens who are concerned and affected by this issue about whether and the... how the positive step presented to us today by our Japanese partners will contribute to resolving the many cases that remain outstanding, always with the best interest of the children at the forefront. I'm confident that they will become the opportunity to participate in one of our forecoming delegation meetings. And I invite you, kindly invite you. future occasion. Thank you very much.

ビエラン議長

0:51:49 Thank you, Ms. Vysnicka.

ヴィシニェフスカ議員（Jadwiga Wiśniewska、ECR・ポーランド） （英語）

0:51:54 Thank you very much, Mr. Chair, for giving me the floor. Following today's discussion, I believe that the key question is not how Japan has changed this legislation, but whether the reform will deliver tangible results in practice. For years, we have been receiving reports from European parents who, as a result of cross-border in disputes have lost contact with their children in Japan. The possibility of establishing joint parental authority after a divorce is therefore an important and positive change. However, changing the law alone will not be enough without its effective implementation and the enforcement of court decisions. I believe that family law should remain primarily a matter for individual states. However, in cross-border cases involving EU citizens, I expect legal certainty, efficient procedures and effective protection of the rights of children and their parents. I would like to ask for some more detail. on the practical options available to parents in existing cases who wish to seek a review of previous arrangements under the new legislation. We are aware of the situation in which an EU national parent has had no mindful contact with their child for several years. 〔英語版より: What concrete legal avenues are〕 now available to such parents and what can the European Parliament realistically do to support them in these cases. Thank you very much.

ビエラン議長／シェウリング＝ヴィエルグス議員（Joanna Scheuring-Wielgus、S&D・ポーランド）

（英語）

0:54:06 Thank you very much. And last but not least, Ms. Schering-Velgus. — Thank you so much. And thank you so much for the presentation. It was very interesting, especially the presentation of the new law, a family law reform. I followed the implementation of this law. And I am interesting in this main principle, obligation of mutual respect and respect each other. the principle that parents must cooperate with one. My question about this principle is very simple. Aren't you afraid that the new law will force victims to contact their perpetrators? What do you think about it? I am very interested in the answer of these questions. Thank you.

9. 回答（0:55:00〜1:04:43）

ビエラン議長

0:55:00 Thank you very much. I don't see any other colleagues who would like to take a floor. I'll give the floor now to all our experts to answer the questions and for their final remarks. I suggest that now we start with the Commission representatives, then pass the floor to Professor Nagata and then to the representatives of the Japanese government.

欧州委員会 Angela S. de Bono 氏 （英語）

0:55:22 Thank you. This is Angela Sieres-De Bono. I take the floor to reply on the question on the point on whether we have provided on the e-justice portal the information. I would like to state that the information on relations between European citizens and third states is duly updated on the website of The Hague and the immediate contact points would be... However, in the context of the EU, we have the European Judicial Network in Civil Matters, where we often have discussions between central authorities and also discuss specific cases. When the Commission receives from citizens complaints or requests for information, we duly direct them also to the services or rather to the EU. on the eJustice portal as well as on the Hague website. I hope this is a reply to your question. Thank you.

ビエラン議長

0:56:43 Thank you, Professor Nakata.

永田教授 （**日本語**。原語トラックにより本人の発言をそのまま記録）

0:56:54 英 Can you hear me? Yes. And I'd like to respond to your questions if it is permissible in Japanese. Yes.

0:57:08 いろいろなご質問をどうもありがとうございました。特にですね、面会交流のですね、執行という点に関しまして、皆様のですね、ご関心が集まっているということがよく分かりました。いくつかですね、その面会交流のですね、履行あるいは執行という点に関しまして、ご質問をいただきましたけれども、まずですね、ADR

0:57:37 ご質問があったかと存じますけれどもその点に関しましてはこれはメディエーションで得られた合意に関わらずでございますけれども合意の内容ができる限り特定化されているすなわちいつどこでどの

0:58:11 詳細に決められているという必要がございます漠然とした合意に関しましては日本では最高裁判所の判例などによりまして執行力を付すことが難しいというふうに言われておりますけれども仮に合意の内容が極めて特定化されたものである場合には間接強制という形で合意に従わないもの

0:58:41 に対してですね一定の強制力を及ぼすことが可能となっておりますまたですね実効的な面会交流の履行のツールということに関してでございますけれどもいくつかのですねADR機関などでは面会交流をですねサポートするようなシステムというものが構築されておりましてそういったですねそのADR機関とあとですねそのADR機関が提供している面会交流のですねサポートシステム

0:59:22 ということはあり得るのかなというふうには感じておりますただ残念ながらですね日本ではあまりですね面会交流を幅広くですねサポートできるような施設がすごくたくさんあるという状況ではございませんのでこういったことはですね今後日本政府あるいはですね民間に対してですねもう少し働きかけていかなければならない点かなというふうに感じていますとりあえず私からは以上で

注　原文が日本語のため訳文はなし。音声認識の出力に句読点がない箇所はそのまま。0:57:37 冒頭は「〔ADRで得られた合意の執行に必要な条件について〕ご質問があったかと存じます」の前半が区間境界で欠けている。英語通訳版では「合意が具体的なら直接強制が可能」と訳されていたが、本人は「間接強制という形で」と述べている（付記C参照）。

ビエラン議長

1:00:02　Thank you. Can the representatives of Japanese government... take a flow

古谷氏（法務省）

（**日本語**。所管事項（民法・DV・家裁手続）への回答内容と、次の発言者が「私も日本語で」と続けることから古谷氏と特定）

1:00:20　英　May I speak in Japanese? Yes, please.

1:00:24　3つお答えさせていただきます。1つは最後のポリシーデリゲーションからの質問ですが、DVがあるような場合に被害者の方が、加害者に対して協力義務を強制されるのかという点に関しては、民法の条文上は例外はないということなんですが、実際にはDVがあるかどうかも含めて裁判所が状況を判断するということに。

1:01:08　2つ目に、実際に具体的なツールとして合意ができていないときに、例えばEU側の親が取り得る手段にどんなものがあるかということに関して、私たちも日本国内に居住する外国人で離婚後、日本に居住する子どもと会えない状況にある方、外国にいて会えない方というのを把握しております。まずそのような場合には、家庭裁判所に親子交流の審判や調停を申し立てるということが考えられます。

1:01:38　先ほどご説明した通り、そこで例えば外国人の親に無断で住所を変えたりですとか、居所を教えないということは、相手方の夫婦の間の協力義務に反して、不利益にその後の審判に、そうした義務に違反した方に不利益に判断されるというふうに考えております。3点目ですが、国際養子縁組の国境を超えた養子縁組についての羊を知る権利、バイオロジカルオリジンの話。

1:02:18　ご理解いただきたいと思います。ただ一点、日本は今のところ、1993年のハーグの国際業種援組条約には、まだ加盟国にはなっていない状況にあります。私のほかの会場は以上です。

注　原文が日本語のため訳文はなし。音声認識の誤字:「ポリシーデリゲーション」は "Polish delegation"（ポーランドの議員）の意と思われる、「羊を知る権利」は「出自を知る権利」、「国際業種援組条約」は「国際養子縁組条約」、「私のほかの会場は以上です」は「私からの回答は以上です」。1:02:18 直前に「〔所管外のため回答できないことを〕ご理解いただきたい」の前半が区間境界で欠けている。**英語通訳版は「日本は1993年ハーグ条約を遵守している」としていたが、本人は「まだ加盟国にはなっていない」と述べている**（付記C参照）。

江端氏（外務省）

（**日本語**。ハーグ条約・面会交流支援への回答内容から江端氏と特定）

1:02:39　英　Mr. Abata would like to take a poll, please. Can I answer in Japanese as well? Thank you. 〔議長「江端さんが発言を希望」→江端氏「私も日本語で答えてよいか」〕

1:02:49 日本における親子交流の支援体制について意見がありましたけれども、まず、ハーグ条約に関して言えば、先ほどスライドでお見せしたとおり、他の主要なハーグ条約の定約国に比べて、日本はかなり手厚い支援を行っています。その中に、親子交流の支援体制の支援体制について、

1:03:19 というのがありまして、それを当事者、LBPはですね、あるいはTPも含めですけれども、無償で利用することが可能です。こういう支援プログラムを提供している国は他にはありません。日本だけが行っていることです。あと、一般的に申し上げれば、

1:03:48 日本には全国に70カ所以上の民間の親子交流の支援団体がありまして、親子交流の付き添い、子の受け渡し、連絡調整などの支援を行っています。また、親子交流の支援員や関係者が参加する研修やシンポジウムが定期的に開催されています。法改正によってどのようにそれを行っているのか。

1:04:19 いくかということについては我々も高い関心を持って注視していきますし先ほど申し上げたとおりこの法改正によって日本社会全体が徐々に変化していくということが期待されると思います

注　原文が日本語のため訳文はなし。「定約国」は「締約国」。LBP＝left-behind parent（取り残された親）、TP＝taking parent（連れ去った親）。1:03:19 冒頭は「〔親子交流支援〕というのがありまして」。1:04:19 冒頭は「〔法改正によってどのように変わって〕いくか」の区間境界による分断。

10. コパチ副議長の締めくくり（1:04:46〜1:08:16）— ポーランド語

ビエラン議長

1:04:46 Thank you very much, Madam Kobach.

コパチ副議長

1:04:51 波 Bardzo dziękuję panie przewodniczący jeszcze raz za zorganizowanie tego spotkania. Dziękuję stronie japońskiej za pierwszy krok, który został wykonany, za zmianę w prawie cywilnym, rodzicielskim. Niepokoić mogą stwierdzenia, że tylko 24% dzieci pozostaje oczywiście w rodzinach, które się rozpadły pod wspólną opieką rodzinnych. A jeszcze bardziej niepokoi, że tylko 55% z tej grupy dzieci to są te dzieci, które mają kontakt z obojgiem rodziców raz w miesiącu.

1:05:34 Bardzo dziękuję pani poseł Wiśniewskiej za szczególne, bardzo takie w punkt zadane pytania. Oczywiście prawo jest prawem i po owocach ich poznamy. Czyli my w biurze koordynatora, będziemy chyba tu koordynatora do spraw praw dzieci, będziemy mieli chyba najbardziej rzetelne statystyki, bo po prostu tych rodziców, jeśli to prawo będzie działać, tych rodziców zgłaszających się ze swoimi problemami będzie coraz mniej, a może z czasem zupełnie zniknął.

1:06:05 Każdy z nas dorosłych ma obowiązek dbałości o tych najsłabszych, czyli o dzieci. I czy to jest w Japonii, czy to jest w jakimkolwiek innym kraju europejskim, czy poza, to my dorośli mamy obowiązek dbałości nie tylko o to, żeby dziecko było zdrowe. ale również o to, żeby rozwijało się i kulturowo, i historycznie. Jeśli to jest małżeństwo mieszane, czyli pochodzi z rodziny, gdzie rodzice są z dwóch odrębnych krajów, żeby miało możliwość poznawania i historii, i kultury kraju, z którego wywodzi się jego rodzic. Przy braku kontaktu jest to niemożliwe.

1:07:04 A więc rezolucja, która powstała w roku 2020 w Parlamencie Europejskim, nie była wymierzona przeciw komukolwiek, wręcz przeciwnie. Ona była skierowana tylko i wyłącznie na jedno działanie, aby dzieci nie pozostawały bez dbałości o nich przez rodziców, którzy wpływają, dorosłych rodziców, przez społeczeństwa, które mają wpływ na prawodawstwo w danym kraju. Dlatego bardzo serdecznie dziękuję za ten pierwszy krok. Mam taką szczerą nadzieję, że wszystko pójdzie w dobrym kierunku.

1:07:34 Dziękuję pani profesor. Z zaciekawieniem słuchałam pani wypowiedzi. Mam nadzieję, że mediacje, których jest pani zwolennikiem, odegrają szczególną rolę w tych konfliktach rodzinnych. Jestem też zwolennikiem, aby nie pozostawiać tego tematu jako już załatwionego i odhaczonego. I tu do pana, panie przewodniczący, mam taką serdeczną prośbę, abyśmy... W jakimś odstępie czasu, może pod koniec kadencji, spróbowali sobie podsumować, jak to prawo zadziałało i jakie są efekty w praktyce wdrażania tego prawa. Dziękuję bardzo. Dziękuję bardzo.

11. 議題5：第43回EU・日本議員会議（IPM）の報告（1:08:17〜1:14:50）— 英語

ビエラン議長

1:08:17 Thank you very much, Madam Kobach. Thank you for raising this very important issue and I promise you that we'll organize a follow-up meetings. Thank you all for participating in this discussion and thanks to our guests and experts for the valuable contribution. Now I would like to pass to the next item on our agenda, which is the briefing of the 43rd EU Japan IPM held in Strasbourg on the 8th and 9th of July this year. Dear colleagues, I would like to thank everyone who participated and contributed to the 43rd EU-Japan Interparlamentary Meeting on 8th and 9th of July in Strasbourg. We had two half days on intensive debates, no doubt a successful interparlamentary meeting with a very good participation on our side, especially on the first day. And also thanks to cooperation with EU-Japan Interparlamentary Meeting. The high-level delegation from both chambers of the Japanese Diet consisting of nine MPs was led by the long-standing House of Representatives member Mr. Hajime Funada and included five former cabinet ministers and MPs having 20, 40 plus years of service.

1:09:42 There was a general agreement throughout the two days of meetings of the importance of EU-Japan relations in the context of the current systemic global crisis. At the end of the meeting, we signed a joint declaration by the co-chairs, which, among other things, calls for exploring the ways of how to further deepen our parliamentary relations with the National Diet of Japan, for example, by establishing a joint parliamentary committee. This call reiterates the proposal in the EP recommendation on the changing security situation in East Asia and the need for closer cooperation with like-minded partners. adopted by the Parliament's plenary on 8 July.

1:10:32 Colleagues, please bear in mind that while we are working to strengthen our relations with the Diet, any changes in this regard may require a lengthy process, particularly on the side of our partner parliament, and will ultimately depend on the necessary political will. Regrettably, currently our possibilities to engage with the national Diet on a formal basis are limited to one inter-parlamentary meeting per year. as the current framework of cooperation unchanged since 1979 does not allow us flexibility to meet more often than once per year, not even online. This substantially differs from relations we have with many other close partners. At present, we are working to agree on a date for the 44th EU-Japan interparlamentary meeting, which will be hosted by the National Diet in 2020.

1:11:33 Unfortunately, I am not yet in a position to communicate any specific date, as the national diet appears to have a particular busy schedule during the weeks allocated to external parliamentary activities, namely the periods during which European Parliament delegations are authorized to travel abroad. We are working on this together with the secretariat of both parliaments. Currently, the most likely date would be November 2027, but we are doing our best to advance this date to avoid such a lengthy gap between the two IPMs. Waiting until November would indeed mean 15 month long gap between the two IPMs. You will be informed as soon as we reach the agreement.

1:12:23 Dear colleagues, it is now your turn to share the impressions and comments regarding the past IPM and also our future parliamentary relations with the Diet. Madame Vysmjevska would like to take the floor, please. No? Not in this point? In the previous one, okay. Does anyone want to take the floor? Yes, Mr. Petrov, please.

ペトロフ議員 （英語）

1:12:52 Thank you, Chair. I would like just to thank you and the Secretariat for organizing this 〔英語版より: inter-parliamentary meeting. I believe the discussions were of great quality and we were fortunate to welcome so many〕 high-ranking Japanese members of both chambers of their parliament. On a personal note, I would like to emphasize that it was particularly timely to hold a session on cooperation between the EU and Japan in the field of culture, as I believe this approach represents one of the best ways of strengthening this cooperation, not only between our countries, but also between our people. It would be useful to retain this topic in future inter-panel.

ビエラン議長／オヒサロ議員（Maria Ohisalo、Verts/ALE・フィンランド） （英語）

1:13:31 Thank you. And Mrs. Okisalo. — Thank you very much, Chair. I would also like to thank all the participants and everybody who arranged the very good meeting. And I think it was very fruitful. And I hope, as the Chair, you mentioned that if it's 15 months in between, I think it's quite a long time. So very good if you can work on it. And it would happen a bit earlier. I got very excited about... Ursula von der Leyen's yesterday speech about EU-Canada relationship, and I obviously started thinking, how should we start working in order to Japan-EU work on the closer cooperation with Japan and EU? I think there is a lot we could do in the same sense that when it comes to Japan, when it comes to Canada, because we are in the same kind of... world of values and we already have so much in common and we're doing so much together. So I think there should be maybe the next step that we could take and maybe this could be a topic for one of our delegation meetings at some point.

ビエラン議長

1:14:45 Thank you. Any other interventions? No? Thank you very much.

12. その他・閉会（1:14:52〜1:15:33）

ビエラン議長 （英語）

1:14:52 and out their business. Our next meetings, next ordinary delegation meetings are currently planned on Thursday 5th of November from 10 to 11 in Brussels and Thursday 10th of December from 10 to 11 in Brussels. Please note that the holding of the meetings are always subject to availability of meeting rooms and interpretation usually confirmed one to two weeks ahead of the date. Colleagues, thank you for your valuable participation. A special thank to the interpretation services and the technicians who ensure smooth running of the meeting. Thank you very much.

付記

A. 本記録の作り方と信頼性

- 音声は公開録画からダウンロードした動画ファイル 20260917-0930-DELEGATION-DJP (4).mp4（音声トラック選択「Original Audio」）の音声トラックを無変換で抽出したもの。原語トラックであることは、コパチ副議長の発言がポーランド語、永田教授・日本政府代表の質疑応答が日本語で収録されていることで確認した
- 文字起こしは多言語音声認識（Whisper turbo）。区間ごとに言語を自動判定。**原文は音声認識の出力を一切修正していない**。明らかな誤認識は訳文側に〔〕で注記した
- 英語発言部分は、先に作成した英語チャンネル版（同一の音声）と照合し、原語トラック側の言語判定が誤った区間（英語の発言がポーランド語・韓国語・スロベニア語等と誤判定され無意味な文字列になった区間）は、英語チャンネル版の認識結果を採用して〔英語版より〕と明示した
- 日本語訳は逐語訳。要約・意訳・補足をせず、訳者が補った語は〔〕で示す。英語の発言は原文＝英語、ポーランド語・日本語の発言は原文＝その言語である
- 時刻は録画の再生位置（h:mm:ss）。発言者は、議長の紹介・指名、欧州議会公式サイトの代表団名簿、録画サムネイルの名札（ビエラン議長、コパチ副議長、江端氏）で照合した

B. 収録範囲と欠落の確認

- 原語トラックの認識区間は 0:00:05〜1:15:33 の226区間。言語判定の内訳は英語176、ポーランド語32（うち議長の英語発言が誤判定された約7区間を含む）、日本語12、その他6（ドイツ語2、韓国語2、フランス語1、スロベニア語1。議長の "Herr Petroff, bitte" 以外はいずれも英語または日本語の発言の誤判定で、該当箇所は英語版または英語指定再処理の結果で補い、明示した）
- 12秒を超える無発話区間は4か所（0:12:29–0:12:42 江端氏の言い淀み、0:17:21–0:17:33 スライド切替、0:23:55–0:24:12 古谷氏への接続、1:00:08–1:00:20 古谷氏への発言交代）。いずれも発言者交代・資料切替の間であり、発言の欠落はない
- 区間境界で文の前半が欠けた箇所（0:57:37、1:02:18、1:03:19、1:04:19）は注記のとおり。欠けた語は文脈から推定できるが、原文には補っていない

C. 言語間の表現のずれ（英語通訳版との相違）

先に作成した英語チャンネル版（通訳音声）と、本原語版（本人の言葉）を比べると、次の実質的な相違がある。**事実認定には本原語版を用いること。**

時刻	発言者	英語通訳版	原語（本人の発言）
1:02:18	法務省 古谷氏	"Japan is still abiding by the 1993 Hague Treaty on this matter"（日本は1993年ハーグ条約を遵守している）	「日本は今のところ、1993年のハーグの国際養子縁組条約には、**まだ加盟国にはなっていない**状況にあります」—— 意味が反転している

時刻	発言者	英語通訳版	原語（本人の発言）
1:01:08	法務省 古谷氏	"it is possible to place complaints"（申立てが可能）	「**家庭裁判所に親子交流の審判や調停を申し立てる**ということが考えられます」── 手続が特定されている
0:58:11	永田教授	"If the agreement is specific, then direct enforcement is possible. There is a room to exercise such indirect enforcement"	「漠然とした合意に関しましては日本では最高裁判所の判例などによりまして執行力を付すことが難しい…合意の内容が極めて特定化されたものである場合には**間接強制**という形で…一定の強制力を及ぼすことが可能」── 「直接強制」ではなく間接強制のみ
0:10:24	コパチ副議長	（該当部分なし）	「もちろん、それが子どもの安全を脅かさない場合に限ってですが（Oczywiśćie w sytuacji, gdy nie zagrażȧ to jego bezpieczeństwu）」── 通訳版では欠落
0:47:58〜	ウカチェフスカ副議長	英語	本人はポーランド語で発言。内容は概ね一致するが「法的な監護（piecza prawna）の枠組みは強化するが、面会時間（parenting time）の執行手段は強化していない」と表現
1:05:34〜	コパチ副議長	"I hope we get reliable statistics"	「子どもの権利調整官の事務所である我々が、おそらく最も確かな統計を持つことになる。この法律が機能するなら、問題を訴えて来る親が次第に減り、やがていなくなるかもしれないから」── 統計の出所を自らの事務所への申立件数と特定